Further, the universal Church cannot err; since He Who "was heard for His reverence" (Heb. 5:7) said to Peter, on whose profession of faith the Church was founded (Lk. 22:32): "I have prayed for thee that thy faith fail not." Now the universal Church approves and grants indulgences. Therefore indulgences have some value.

I answer that, All admit that indulgences have some value, for it would be blasphemy to say that the Church does anything in vain. But some say that they do not avail to free a man from the debt of punishment which he has deserved in Purgatory according to God's judgment, and that they merely serve to free him from the obligation imposed on him by the priest as a punishment for his sins, or from the canonical penalties he has incurred. But this opinion does not seem to be true. First, because it is expressly opposed to the privilege granted to Peter, to whom it was said (Mat. 16:19) that whatsoever he should loose on earth should be loosed also in heaven. Wherefore whatever remission is granted in the court of the Church holds good in the court of God. Moreover the Church by granting such indulgences would do more harm than good, since, by remitting the punishment she had enjoined on a man, she would deliver him to be punished more severely in Purgatory.

Hence we must say on the contrary that indulgences hold good both in the Church's court and in the judgment of God, for the remission of the punishment which remains after contrition, absolution, and confession, whether this punishment be enjoined or not. The reason why they so avail is the oneness of the mystical body in which many have performed works of satisfaction exceeding the requirements of their debts; in which, too, many have patiently borne unjust tribulations whereby a multitude of punishments would have been paid, had they been incurred. So great is the quantity of such merits that it exceeds the entire debt of punishment due to those who are living at this moment: and this is especially due to the merits of Christ: for though He acts through the sacraments, yet His efficacy is nowise restricted to them, but infinitely surpasses their efficacy.

Now one man can satisfy for another, as we have explained above (Q[13], A[2]). And the saints in whom this super-abundance of satisfactions is found, did not perform their good works for this or that particular person, who needs the remission of his punishment (else he would have received this remission without any indulgence at all), but they performed them for the whole Church in general, even as the Apostle declares that he fills up "those things that are wanting of the sufferings of Christ . . . for His body, which is the Church" to whom he wrote (Col. 1:24). These merits, then, are the common property of the whole Church. Now those things which are the common property of a number are distributed to the various individuals according to the judgment of him who rules them all. Hence, just as one man would obtain the remission of his punishment if another were to satisfy for him, so would he too if another's satisfactions be applied to him by one who has the power to do so.

Reply to Objection 1: The remission which is granted by means of indulgences does not destroy the proportion between punishment and sin, since someone has spontaneously taken upon himself the punishment due for another's guilt, as explained above.

Reply to Objection 2: He who gains an indulgence is not, strictly speaking, absolved from the debt of punishment, but is given the means whereby he may pay it.

Reply to Objection 3: The effect of sacramental absolution is the removal of a man's guilt, an effect which is not produced by indulgences. But he who grants indulgences pays the debt of punishment which a man owes, out of the common stock of the Church's goods, as explained above.

Reply to Objection 4: Grace affords a better remedy for the avoidance of sin than does habituation to (good) works. And since he who gains an indulgence is disposed to grace through

the love which he conceives for the cause for which the indulgence is granted, it follows that indulgences provide a remedy against sin. Consequently it is not harmful to grant indulgences unless this be done without discretion. Nevertheless those who gain indulgences should be advised, not, on this account, to omit the penitential works imposed on them, so that they may derive a remedy from these also, even though they may be quit of the debt of punishment; and all the more, seeing that they are often more in debt than they think.

Whether indulgences are as effective as they claim to be?

Objection 1: It would seem that indulgences are not as effective as they claim to be. For indulgences have no effect save from the power of the keys. Now by the power of the keys, he who has that power can only remit some fixed part of the punishment due for sin, after taking into account the measure of the sin and of the penitent's sorrow. Since then indulgences depend on the mere will of the grantor, it seems that they are not as effective as they claim to be.

Objection 2: Further, the debt of punishment keeps man back from the attainment of glory, which he ought to desire above all things. Now, if indulgences are as effective as they claim to be, a man by setting himself to gain indulgences might become immune from all debt of temporal punishment. Therefore it would seem that a man ought to put aside all other kinds of works, and devote himself to gain indulgences.

Objection 3: Further, sometimes an indulgence whereby a man is remitted a third part of the punishment due for his sins is granted if he contribute towards the erection of a certain building. If, therefore, indulgences produce the effect which is claimed for them, he who gives a penny, and then another, and then again another, would obtain a plenary absolution from all punishment due for his sins, which seems absurd.

Objection 4: Further, sometimes an indulgence is granted, so that for visiting a church a man obtains a seven years' remission. If, then, an indulgence avails as much as is claimed for it a man who lives near that church, or the clergy attached thereto who go there every day, obtain as much indulgence as one who comes from a distance (which would appear unjust); moreover, seemingly, they would gain the indulgence several times a day, since they go there repeatedly.

Objection 5: Further, to remit a man's punishment beyond a just estimate seems to amount to the same as to remit it without reason; because in so far as he exceeds that estimate, he limits the compensation. Now he who grants an indulgence cannot without cause remit a man's punishment either wholly or partly, even though the Pope were to say to anyone: "I remit to all the punishment you owe for your sins." Therefore it seems that he cannot remit anything beyond the just estimate. Now indulgences are often published which exceed that just estimate. Therefore they do not avail as much as is claimed for them.

On the contrary, It is written (Job 13:7): "Hath God any need of your lie, that you should speak deceitfully for Him?" Therefore the Church, in publishing indulgences, does not lie; and so they avail as much as is claimed for them.

Further, the Apostle says (1 Cor. 15:14): "If . . . our preaching is vain, your faith is also vain." Therefore whoever utters a falsehood in preaching, so far as he is concerned, makes faith void. and so sins mortally. If therefore indulgences are not as effective as they claim to be, all who publish indulgences would commit a mortal sin: which is absurd.

I answer that, on this point there are many opinions. For some maintain that indulgences have not the efficacy claimed for them, but that they simply avail each individual in proportion to his faith and devotion. And consequently those who maintain this, say that the Church publishes her indulgences in such a way as, by a kind of pious fraud, to induce men to do well, just as a mother entices her child to walk by holding out an apple. But this seems a very dangerous assertion to make. For as Augustine states (Ep. ad Hieron. lxxviii), "if any error were discovered in Holy Writ, the authority of Holy Writ would perish." In like manner, if any error were to be found in the Church's preaching, her doctrine would have no authority in settling questions of faith.

Hence others have maintained that indulgences avail as much as is claimed for them, according to a just estimate, not of him who grants it---who perhaps puts too high a value on it---nor of the recipient---for he may prize too highly the gift he receives, but a just estimate according to the estimate of good men who consider the condition of the person affected, and the utility and needs of the Church, for the Church's needs are greater at one time than at another. Yet, neither, seemingly, can this opinion stand. First, because in that case indulgences would no longer be a remission, but rather a mere commutation. Moreover the preaching of the Church would not be excused from untruth, since, at times, indulgences are granted far in excess of the requirements of this just estimate, taking into consideration all the aforesaid conditions, as, for example, when the Pope granted to anyone who visited a certain church, an indulgence of seven years, which indulgence was granted by Blessed Gregory for the Roman Stations.

Hence others say that the quantity of remission accorded in an indulgence is not to be measured by the devotion of the recipient, as the first opinion suggested, nor according to the quantity of what is given, as the second opinion held; but according to the cause for which the indulgence is granted, and according to which a person is held deserving of obtaining such an indulgence. Thus according as a man approached near to that cause, so would he obtain remission in whole or in part. But neither will this explain the custom of the Church, who assigns, now a greater, now a lesser indulgence, for the same cause: thus, under the same circumstances, now a year's indulgence, now one of only forty days, according to the graciousness of the Pope, who grants the indulgence, is granted to those who visit a church. Wherefore the amount of the remission granted by the indulgence is not to be measured by the cause for which a person is worthy of an indulgence.

We must therefore say otherwise that the quantity of an effect is proportionate to the quantity of the cause. Now the cause of the remission of punishment effected by indulgences is no other than the abundance of the Church's merits, and this abundance suffices for the remission of all punishment. The effective cause of the remission is not the devotion, or toil, or gift of the recipient; nor, again, is it the cause for which the indulgence was granted. We cannot, then, estimate the quantity of the remission by any of the foregoing, but solely by the merits of the Church---and these are always superabundant. Consequently, according as these merits are applied to a person so does he obtain remission. That they should be so applied demands, firstly, authority to dispense this treasure. secondly, union between the recipient and Him Who merited it---and this is brought about by charity; thirdly, there is required a reason for so dispensing this treasury, so that the intention, namely, of those who wrought these meritorious works is safeguarded, since they did them for the honor of God and for the good of the Church in general. Hence whenever the cause assigned tends to the good of the Church and the honor of God, there is sufficient reason for granting an indulgence.

Hence, according to others, indulgences have precisely the efficacy claimed for them, provided that he who grants them have the authority, that the recipient have charity, and that, as regards the

cause, there be piety which includes the honor of God and the profit of our neighbor. Nor in this view have we "too great a market of the Divine mercy" [*St. Bonaventure, Sent. iv, D, 20], as some maintain, nor again does it derogate from Divine justice, for no punishment is remitted, but the punishment of one is imputed to another.

Reply to Objection 1: As stated above (Q[19], A[3]) there are two keys, the key of orders and the key of jurisdiction. The key of orders is a sacramental: and as the effects of the sacraments are fixed, not by men but by God, the priest cannot decide in the tribunal of confession how much shall be remitted by means of the key of orders from the punishment due; it is God Who appoints the amount to be remitted. On the other hand the key of jurisdiction is not something sacramental, and its effect depends on a man's decision. The remission granted through indulgences is the effect of this key, since it does not belong to the dispensation of the sacraments, but to the distribution of the common property of the Church: hence it is that legates, even though they be not priests, can grant indulgences. Consequently the decision of how much punishment is to be remitted by an indulgence depends on the will of the one who grants that indulgence. If, however, he remits punishment without sufficient reason, so that men are enticed to substitute mere nothings, as it were, for works of penance, he sins by granting such indulgences, although the indulgence is gained fully.

Reply to Objection 2: Although indulgences avail much for the remission of punishment, yet works of satisfaction are more meritorious in respect of the essential reward, which infinitely transcends the remission of temporal punishment.

Reply to Objection 3: When an indulgence is granted in a general way to anyone that helps towards the building of a church, we must understand this to mean a help proportionate to the giver: and in so far as he approaches to this, he will gain the indulgence more or less fully. Consequently a poor man by giving one penny would gain the full indulgence, not so a rich man, whom it would not become to give so little to so holy and profitable a work; Just as a king would not be said to help a man if he gave him an "obol."

Reply to Objection 4: A person who lives near the church, and the priest and clergy of the church, gain the indulgence as much as those who come perhaps a distance of a thousand days' journey: because the remission, as stated above, is proportionate, not to the toil, but to the merits which are applied. Yet he who toils most gains most merit. This, however, is to be understood of those cases in which an indulgence is given in an undeterminate manner. For sometimes a distinction is expressed: thus the Pope at the time of general absolution grants an indulgence of five years to those who come from across the seas, and one of three years to those who come from across the mountains, to others an indulgence of one year. Nor does a person gain the indulgence each time he visits the church during the term of indulgence, because sometimes it is granted for a fixed time; thus when it is said, "Whoever visits such and such a church until such and such a day, shall gain so much indulgence," we must understand that it can be gained only once. on the other hand if there be a continual indulgence in a certain church, as the indulgence of forty days to be gained in the church of the Blessed Peter, then a person gains the indulgence as often as he visits the church.

Reply to Objection 5: An indulgence requires a cause, not as a measure of the remission of punishment, but in order that the intention of those whose merits are applied, may reach to this particular individual. Now one person's good is applied to another in two ways: first, by charity; and in this way, even without indulgences, a person shares in all the good deeds done, provided he have charity: secondly, by the intention of the person who does the good action; and in this way,

provided there be a lawful cause, the intention of a person who has done something for the profit of the Church, may reach to some individual through indulgences.

Whether an indulgence ought to be granted for temporal help?

Objection 1: It would seem that an indulgence ought not to be granted for temporal help. Because the remission of sins is something spiritual. Now to exchange a spiritual for a temporal thing is simony. Therefore this ought not to be done.

Objection 2: Further, spiritual assistance is more necessary than temporal. But indulgences do not appear to be granted for spiritual assistance. Much less therefore ought they to be granted for temporal help.

On the contrary, stands the common custom of the Church in granting indulgences for pilgrimages and almsgiving.

I answer that, Temporal things are subordinate to spiritual matters, since we must make use of temporal things on account of spiritual things. Consequently an indulgence must not be granted for the sake of temporal matters as such, but in so far as they are subordinate to spiritual things: such as the quelling of the Church's enemies, who disturb her peace; or such as the building of a church, of a bridge, and other forms of almsgiving. It is therefore evident that there is no simony in these transactions, since a spiritual thing is exchanged, not for a temporal but for a spiritual commodity.

Hence the Reply to the First Objection is clear.

Reply to Objection 2: Indulgences can be, and sometimes are, granted even for purely spiritual matters. Thus Pope Innocent IV granted an indulgence of ten days to all who prayed for the king of France; and in like manner sometimes the same indulgence is granted to those who preach a crusade as to those who take part in it.

OF THOSE WHO CAN GRANT INDULGENCES (FOUR ARTICLES)

We must now consider those who can grant indulgences: under which head there are four points of inquiry:

(1) Whether every parish priest can grant indulgences?

(2) Whether a deacon or another, who is not a priest, can grant indulgences?

(3) Whether a bishop can grant them?

(4) Whether they can be granted by one who is in mortal sin?

Whether every parish priest can grant indulgences?

Objection 1: It would seem that every parish priest can grant indulgences. For an indulgence derives its efficacy from the superabundance of the Church's merits. Now there is no congregation without some superabundance of merits. Therefore every priest, who has charge of a congregation, can grant indulgences, and, in like manner, so can every prelate.

Objection 2: Further, every prelate stands for a multitude, just as an individual stands for himself. But any individual can assign his own goods to another and thus offer satisfaction for a third person. Therefore a prelate can assign the property of the multitude subject to him, and so it seems that he can grant indulgences.

On the contrary, To excommunicate is less than to grant indulgences. But a parish priest cannot do the former. Therefore he cannot do the latter.

I answer that, Indulgences are effective, in as much as the works of satisfaction done by one person are applied to another, not only by virtue of charity, but also by the intention of the person who did them being directed in some way to the person to whom they are applied. Now a person's intention may be directed to another in three ways, specifically, generically and individually. Individually, as when one person offers satisfaction for another particular person; and thus anyone can apply his works to another. Specifically, as when a person prays for the congregation to which he belongs, for the members of his household, or for his benefactors, and directs his works of satisfaction to the same intention: in this way the superior of a congregation can apply those works to some other person, by applying the intention of those who belong to his congregation to some fixed individual. Generically, as when a person directs his works for the good of the Church in general; and thus he who presides over the whole Church can communicate those works, by applying his intention to this or that individual. And since a man is a member of a congregation, and a congregation is a part of the Church, hence the intention of private good includes the intention of the good of the congregation, and of the good of the whole Church. Therefore he who presides over the Church can communicate what belongs to an individual congregation or to an individual man: and he who presides over a congregation can communicate what belongs to an individual man, but not conversely. Yet neither the first nor the second communication is called an indulgence, but only the third; and this for two reasons. First, because, although those communications loose man from the debt of punishment in the sight of God, yet he is not freed from the obligation of fulfilling the satisfaction enjoined, to which he is bound by a commandment of the Church; whereas the third communication frees man even from this obligation. Secondly, because in one person or even in one congregation there is not such an unfailing supply of merits as to be sufficient both for the one person or congregation and for all others; and consequently the individual is not freed from the entire debt of punishment unless satisfaction is offered for him individually, to the very amount that he owes. On the other hand, in the whole Church there is an unfailing supply of merits, chiefly on account of the merit of Christ. Consequently he alone who is at the head of the Church can grant indulgences. Since, however, the Church is the congregation of the faithful, and since a congregation of men is of two kinds, the domestic, composed of members of the same family, and the civil, composed of members of the same nationality, the Church is like to a civil congregation, for the people themselves are called the Church; while the various assemblies, or parishes of one diocese are likened to a congregation in the various families and services. Hence a bishop alone is properly called a prelate of the Church, wherefore he alone, like a bridegroom, receives the ring of the Church. Consequently full power in the dispensation of the sacraments, and jurisdiction in the public tribunal, belong to him alone as the public person, but to others by delegation from him. Those priests who have charge of the people are not prelates strictly speaking, but assistants, hence, in consecrating priests the bishop says: "The more fragile we are, the more we need these assistants": and for this reason they do not dispense all the sacraments. Hence parish priests, or abbots or other like prelates cannot grant indulgences.

This suffices for the Replies to the Objections.

Whether a deacon or another who is not a priest can grant an indulgence?

Objection 1: It would seem that a deacon, or one that is not a priest cannot grant an indulgence. Because remission of sins is an effect of the keys. Now none but a priest has the keys. Therefore a priest alone can grant indulgences.

Objection 2: Further, a fuller remission of punishment is granted by indulgences than by the tribunal of Penance. But a priest alone has power in the latter, and, therefore, he alone has power in the former.

On the contrary, The distribution of the Church's treasury is entrusted to the same person as the government of the Church. Now this is entrusted sometimes to one who is not a priest. Therefore he can grant indulgences, since they derive their efficacy from the distribution of the Church's treasury.

I answer that, The power of granting indulgences follows jurisdiction, as stated above (Q[25], A[2]). And since deacons and others, who are not priests, can have jurisdiction either delegated, as legates, or ordinary, as bishops-elect, it follows that even those who are not priests can grant indulgences, although they cannot absolve in the tribunal of Penance, since this follows the reception of orders. This suffices for the Replies to the Objections, because the granting of indulgences belongs to the key of jurisdiction and not to the key of orders.

Whether a bishop can grant indulgences?

Objection 1: It would seem that even a bishop cannot grant indulgences. Because the treasury of the Church is the common property of the whole Church. Now the common property of the whole Church cannot be distributed save by him who presides over the whole Church. Therefore the Pope alone can grant indulgences.

Objection 2: Further, none can remit punishments fixed by law, save the one who has the power to make the law. Now punishments in satisfaction for sins are fixed by law. Therefore the Pope alone can remit these punishments, since he is the maker of the law.

On the contrary, stands the custom of the Church in accordance with which bishops grant indulgences.

I answer that, The Pope has the plenitude of pontifical power, being like a king in his kingdom: whereas the bishops are appointed to a share in his solicitude, like judges over each city. Hence them alone the Pope, in his letters, addresses as "brethren," whereas he calls all others his "sons." Therefore the plenitude of the power of granting indulgences resides in the Pope, because he can grant them, as he lists, provided the cause be a lawful one: while, in bishops, this power resides subject to the Pope's ordination, so that they can grant them within fixed limits and not beyond.

This suffices for the Replies to the Objections.

Whether indulgences can be granted by one who is in mortal sin?

Objection 1: It would seem that indulgences cannot be granted by one who is in mortal sin. For a stream can no longer flow if cut off from its source. Now the source of grace which is the Holy Ghost is cut off from one who is in mortal sin. Therefore such a one can convey nothing to others by granting indulgences.

Objection 2: Further, it is a greater thing to grant an indulgence than to receive one. But one who is in mortal sin cannot receive an indulgence, as we shall show presently (Q[27], A[1]). Neither, therefore, can he grant one.

On the contrary, Indulgences are granted in virtue of the power conferred on the prelates of the Church. Now mortal sin takes away, not power but goodness. Therefore one who is in mortal sin can grant indulgences.

I answer that, The granting of indulgences belongs to jurisdiction. But a man does not, through sin, lose jurisdiction. Consequently indulgences are equally valid, whether they be granted by one who is in mortal sin, or by a most holy person; since he remits punishment, not by virtue of his own merits, but by virtue of the merits laid up in the Church's treasury.

Reply to Objection 1: The prelate who, while in a state of mortal sin, grants an indulgence, does not pour forth anything of his own, and so it is not necessary that he should receive an inflow from the source, in order that he may grant a valid indulgence.

Reply to Objection 2: Further, to grant an indulgence is more than to receive one, if we consider the power, but it is less, if we consider the personal profit.

OF THOSE WHOM INDULGENCES AVAIL (FOUR ARTICLES)

We must now consider those whom indulgences avail: under which head there are four points of inquiry:

(1) Whether indulgences avail those who are in mortal sin?

(2) Whether they avail religious?

(3) Whether they avail a person who does not fulfill the conditions for which the indulgence is given?

(4) Whether they avail him who grants them?

Whether an indulgence avails those who are in mortal sin?

Objection 1: It would seem that an indulgence avails those who are in mortal sin. For one person can merit grace and many other good things for another, even though he be in mortal sin. Now indulgences derive their efficacy from the application of the saints' merits to an individual. Therefore they are effective in one who is in mortal sin.

Objection 2: Further, the greater the need, the more room there is for pity. Now a man who is in mortal sin is in very great need. Therefore all the more should pity be extended to him by indulgence.

On the contrary, A dead member receives no inflow from the other members that are living. But one who is in mortal sin, is like a dead member. Therefore he receives no inflow, through indulgences, from the merits of living members.

I answer that, Some hold that indulgences avail those even who are in mortal sin, for the acquiring of grace, but not for the remission of their punishment, since none can be freed from punishment who is not yet freed from guilt. For he who has not yet been reached by God's operation unto the remission of guilt, cannot receive the remission of his punishment from the minister of the Church neither by indulgences nor in the tribunal of Penance.

But this opinion seems to be untrue. Because, although those merits which are applied by means of an indulgence, might possibly avail a person so that he could merit grace (by way of congruity and impetration), yet it is not for this reason that they are applied, but for the remission of punishment. Hence they do not avail those who are in mortal sin, and consequently, true contrition and confession are demanded as conditions for gaining all indulgences. If however the merits were applied by such a form as this: "I grant you a share in the merits of the whole Church---or of one congregation, or of one specified person," then they might avail a person in mortal sin so that he could merit something, as the foregoing opinion holds.

This suffices for the Reply to the First Objection.

Reply to Objection 2: Although he who is in mortal sin is in greater need of help, yet he is less capable of receiving it.

Whether indulgences avail religious?

Objection 1: It would seem that indulgences do not avail religious. For there is no reason to bring supplies to those who supply others out of their own abundance. Now indulgences are derived from the abundance of works of satisfaction to be found in religious. Therefore it is unreasonable for them to profit by indulgences.

Objection 2: Further, nothing detrimental to religious life should be done in the Church. But, if indulgences were to avail religious, this would be detrimental to regular discipline, because religious would become lax on account of indulgences, and would neglect the penances imposed in chapter. Therefore indulgences do not avail religious.

On the contrary, Good brings harm to no man. But the religious life is a good thing. Therefore it does not take away from religious the profit to be derived from indulgences.

I answer that, Indulgences avail both seculars and religious, provided they have charity and satisfy the conditions for gaining the indulgences: for religious can be helped by indulgences no less than persons living in the world.

Reply to Objection 1: Although religious are in the state of perfection, yet they cannot live without sin: and so if at times they are liable to punishment on account of some sin, they can expiate this debt by means of indulgences. For it is not unreasonable that one who is well off absolutely speaking, should be in want at times and in some respect, and thus need to be supplied with what he lacks. Hence it is written (Gal. 6:2): "Bear ye one another's burdens."

Reply to Objection 2: There is no reason why indulgences should be detrimental to religious observance, because, as to the reward of eternal life, religious merit more by observing their rule than by gaining indulgences; although, as to the remission of punishment, which is a lesser good, they merit less. Nor again do indulgences remit the punishment enjoined in chapter, because the chapter is a judicial rather than a penitential tribunal. hence even those who are not priests hold chapter. Absolution from punishment enjoined or due for sin is given in the tribunal of Penance.

Whether an indulgence can ever be granted to one who does not fulfill the conditions required?

Objection 1: It would seem that an indulgence can sometimes be granted to one who does not fulfill the required conditions. Because when a person is unable to perform a certain action his will is taken for the deed. Now sometimes an indulgence is to be gained by giving an alms, which a poor man is unable to do, though he would do so willingly. Therefore he can gain the indulgence.

Objection 2: Further, one man can make satisfaction for another. Now an indulgence is directed to the remission of punishment, just as satisfaction is. Therefore one man can gain an indulgence for another; and so a man can gain an indulgence without doing that for which the indulgence is given.

On the contrary, If the cause is removed, the effect is removed. If therefore a person fails to do that for which an indulgence is granted, and which is the cause of the indulgence, he does not gain the indulgence.

I answer that, Failing the condition of a grant, no grant ensues. Hence, as an indulgence is granted on the condition that a person does or gives a certain thing, if he fails in this, he does not gain the indulgence.

Reply to Objection 1: This is true of the essential reward, but not of certain accidental rewards, such as the remission of punishment and the like.

Reply to Objection 2: A person can by his intention apply his own action to whomever he lists, and so he can make satisfaction for whomever he chooses. On the other hand, an indulgence cannot be applied to someone, except in accordance with the intention of the grantor. Hence, since he applies it to the doer or giver of a particular action or thing, the doer cannot transfer this intention to another. If, however, the indulgence were expressed thus: "Whosoever does this, or for whomsoever this is done, shall gain so much indulgence," it would avail the person for whom it is done. Nor would the person who does this action, give the indulgence to another, but he who grants the indulgence in this form.

Whether an indulgence avails the person who grants it?

Objection 1: It would seem that an indulgence does not avail him who grants it. For the granting of an indulgence belongs to jurisdiction. Now no one can exercise jurisdiction on himself. thus no one can excommunicate himself. Therefore no one can participate in an indulgence granted by himself.

Objection 2: Further, if this were possible, he who grants an indulgence might gain the remission of the punishment of all his sins for some small deed, so that he would sin with impunity, which seems senseless.

Objection 3: Further, to grant indulgences and to excommunicate belong to the same power. Now a man cannot excommunicate himself. Therefore he cannot share in the indulgence of which he is the grantor.

On the contrary, He would be worse off than others if he could not make use of the Church's treasury which he dispenses to others.

I answer that, An indulgence should be given for some reason, in order for anyone to be enticed by the indulgence to perform some action that conduces to the good of the Church and to the honor

of God. Now the prelate to whom is committed the care of the Church's good and of the furthering of God's honor, does not need to entice himself thereto. Therefore he cannot grant an indulgence to himself alone; but he can avail himself of an indulgence that he grants for others, since it is based on a cause for granting it to them.

Reply to Objection 1: A man cannot exercise an act of jurisdiction on himself, but a prelate can avail himself of those things which are granted to others by the authority of his jurisdiction, both in temporal and in spiritual matters: thus also a priest gives himself the Eucharist which he gives to others. And so a bishop too can apply to himself the suffrages of the Church which he dispenses to others, the immediate effect of which suffrages, and not of his jurisdiction, is the remission of punishment by means of indulgences.

The Reply to the Second Objection is clear from what had been said.

Reply to Objection 3: Excommunication is pronounced by way of sentence, which no man can pronounce on himself, for the reason that in the tribunal of justice the same man cannot be both judge and accused. On the other hand an indulgence is not given under the form of a sentence, but by way of dispensation, which a man can apply to himself.

OF THE SOLEMN RITE OF PENANCE (THREE ARTICLES)

We must now consider the solemn rite of Penance: under which head there are three points of inquiry:

(1) Whether a penance can be published or solemnized?

(2) Whether a solemn penance can be repeated?

(3) Whether public penance should be imposed on women?

Whether a penance should be published or solemnized?

Objection 1: It would seem that a penance should not be published or solemnized. Because it is not lawful for a priest, even through fear, to divulge anyone's sin, however notorious it may be. Now a sin is published by a solemn penance. Therefore a penance should not be solemnized.

Objection 2: Further, the judgment should follow the nature of the tribunal. Now penance is a judgment pronounced in a secret tribunal. Therefore it should not be published or solemnized.

Objection 3: Further, "Every deficiency is made good by penance" as Ambrose [*Cf. Hypognost. iii, among the spurious works ascribed to St. Augustine] states. Now solemnization has a contrary effect, since it involves the penitent in many deficiencies: for a layman cannot be promoted to the ranks of the clergy nor can a cleric be promoted to higher orders, after doing solemn penance. Therefore Penance should not be solemnized.

On the contrary, Penance is a sacrament. Now some kind of solemnity is observed in every sacrament. Therefore there should be some solemnity in Penance.

Further, the medicine should suit the disease. Now a sin is sometimes public, and by its example draws many to sin. Therefore the penance which is its medicine should also be public and solemn so as to give edification to many.

I answer that, Some penances should be public and solemn for four reasons. First, so that a public sin may have a public remedy; secondly, because he who has committed a very grave crime

deserves the greatest confusion even in this life; thirdly, in order that it may deter others; fourthly, that he may be an example of repentance, lest those should despair, who have committed grievous sins.

Reply to Objection 1: The priest does not divulge the confession by imposing such a penance, though people may suspect the penitent of having committed some great sin. For a man is not certainly taken to be guilty, because he is punished, since sometimes one does penance for another: thus we read in the Lives of the Fathers of a certain man who, in order to incite his companion to do penance, did penance together with him. And if the sin be public, the penitent, by fulfilling his penance, shows that he has been to confession.

Reply to Objection 2: A solemn penance, as to its imposition, does not go beyond the limits of a secret tribunal, since, just as the confession is made secretly, so the penance is imposed secretly. It is the execution of the penance, that goes beyond the limits of the secret tribunal: and there is nothing objectionable in this.

Reply to Objection 3: Although Penance cancels all deficiencies, by restoring man to his former state of grace, yet it does not always restore him to his former dignity. Hence women after doing penance for fornication are not given the veil, because they do not recover the honor of virginity. In like manner, after doing public penance, a sinner does not recover his former dignity so as to be eligible for the clerical state and a bishop who would ordain such a one ought to be deprived of the power of ordaining, unless perhaps the needs of the Church or custom require it. In that case such a one would be admitted to minor orders by way of exception, but not to the sacred orders. First, on account of the dignity of the latter; secondly, for fear of relapse; thirdly, in order to avoid the scandal which the people might take through recollection of his former sins; fourthly, because he would not have the face to correct others, by reason of the publicity of his own sin.

Whether a solemn penance can be repeated?

Objection 1: It would seem that a solemn penance can be repeated. For those sacraments which do not imprint a character, can be solemnized a second time, such as the Eucharist, Extreme Unction and the like. But Penance does not imprint a character, therefore it can be solemnized over again.

Objection 2: Further, penance is solemnized on account of the gravity and publicity of the sin. Now, after doing penance, a person may commit the same sins over again, or even more grievous sins. Therefore the solemn penance should be imposed again.

On the contrary, Solemn penance signifies the expulsion of the first man from paradise. Now this was done but once. Therefore solemn penance should be imposed once only.

I answer that, Solemn penance ought not to be repeated, for three reasons. First, lest frequency bring it into contempt. Secondly, on account of its signification; for it signifies the expulsion of the first man from paradise, which happened only once; thirdly, because the solemnization indicates, in a way, that one makes profession of continual repentance. Wherefore repetition is inconsistent with solemnization. And if the sinner fall again, he is not precluded from doing penance, but a solemn penance should not be imposed on him again.

Reply to Objection 1: In those sacraments which are solemnized again and again, repetition is not inconsistent with solemnity, as it is in the present case. Hence the comparison fails.